

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Julia Moran	Team: Squad #06	CCRB Case #: 202004557	☒ Force ☒ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Monday, 06/22/2020 3:00 PM	Location of Incident: 40th Precinct Stationhouse	18 Mo. SOL 5/4/2022	Precinct: 40
Date/Time CV Reported Tue, 06/23/2020 6:29 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Tue, 06/23/2020 6:29 PM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. LT Andrew Johnson	00000	941966	040 PCT
2. POM Ritchie Baez	10754	934440	040 PCT
3. An officer			
4. PO Shawn Liriano	03658	951924	040 PCT
5. DTS Thomas Varian	06295	935907	CCCS DLU

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. DT3 Narcisse Gnapi	07146	950504	007 DET
2. LT Antoine Ducret	00000	934800	007 PCT
3. SGT Oneil Smith	03125	946271	030 PCT

Officer(s)	Allegation	Investigator Recommendation
A . LT Andrew Johnson	Abuse: Lieutenant Andrew Johnson stopped § 87(2)(b)	A . Exonerated
B . DTS Thomas Varian	Discourtesy: Detective Thomas Varian spoke discourteously to § 87(2)(b)	B . Substantiated
C . POM Ritchie Baez	Force: Police Officer Ritchie Baez used physical force against § 87(2)(b)	C . Exonerated
D . PO Shawn Liriano	Force: Police Officer Shawn Liriano used physical force against § 87(2)(b)	D . Exonerated
E . An officer	Force: An officer used physical force against § 87(2)(b)	E . Officer(s) Unidentified

Case Summary

On June 23, 2020, § 87(2)(b) filed the following complaint online with the CCRB.

On June 22, 2020, at approximately 1:15 p.m., § 87(2)(b) stood behind the police barricades filming officers outside of the 40th Precinct stationhouse located at 257 Alexander Avenue in the Bronx when Lt. Andrew Johnson, PO Ritchie Baez, and PO Shawn Liriano of the 40th Precinct handcuffed § 87(2)(b) and brought him into the stationhouse (**Allegation A: Abuse of Authority – exonerated**). PO Baez and PO Liriano brought § 87(2)(b) into the holding cells where they removed his handcuffs and then got into an argument about removing § 87(2)(b)'s shoes. Det. Thomas Varian of the 40th Precinct then told § 87(2)(b) “I don’t see you bitching about that. I only see you bitching about us. So mind your fucking business and take off your shoes” (**Allegation B: Discourtesy – substantiated**). PO Baez and PO Liriano then grabbed § 87(2)(b)'s arms and legs and brought him to the ground to handcuff him (**Allegations C and D: Force – exonerated**). Once he was handcuffed, an officer pulled § 87(2)(b)'s thumb backwards (**Allegation E: Force – officer unidentified**). § 87(2)(b) was ultimately transported to the 7th Precinct where he requested medical attention and was transported to § 87(2)(b). He was ultimately released from police custody.

§ 87(2)(b) was not arrested or issued any summonses in regards to this incident.

Eleven BWC videos were obtained in regards to this incident (BR 01 – 11).

Findings and Recommendations

Allegation (A) Abuse of Authority: Lieutenant Andrew Johnson stopped § 87(2)(b)

At the 45 second mark of Lt. Johnson’s first BWC, Lt. Johnson, PO Baez, and PO Liriano approached § 87(2)(b) outside of the barricades. PO Baez removed § 87(2)(b)'s bag and mask and then handcuffed him. § 87(2)(b) told Lt. Johnson that they were arresting him for no reason and Lt. Johnson responded that they were arresting him because he had an I-card. The officers then brought § 87(2)(b) inside the stationhouse (BR 02).

§ 87(2)(b) testified that on June 22, 2020, he went to the 40th Precinct stationhouse to film officers. At the time he was wearing a Guy Fawkes mask from the movie *V for Vendetta*. PO Baez told § 87(2)(b) he could not film him while he was speaking with another civilian, to which § 87(2)(b) said he could. Lt. Johnson then told § 87(2)(b) that the officers could arrest him for an I-card. § 87(2)(b) accused him of lying and told Lt. Johnson to arrest him. Lt. Johnson, PO Baez, and PO Liriano then handcuffed him and brought him into the stationhouse. The officers then informed him he had an I-card for petit larceny (BR 12).

Lt. Johnson testified that he had multiple previous encounters with § 87(2)(b) from June 2, 2020, to June 22, 2020, and therefore knew there was an open I-card for § 87(2)(b) in the 7th Precinct for petit larceny. On June 22, 2020, § 87(2)(b) was in front of the stationhouse acting disorderly by screaming, flailing his arms, harassing officers, and trying to get other civilians involved with his actions. Lt. Johnson did not recall if he gave any instructions to § 87(2)(b). Lt. Johnson informed PO Baez that § 87(2)(b) had two open I-cards for petit larceny in the 7th Precinct. Both I-cards were probable cause to arrest and were issued on June 3, 2020. Lt. Johnson informed § 87(2)(b) that he had an I-card several times and § 87(2)(b)'s responses ranged from denial, to telling the officer to take him to Manhattan, or saying he was being arrested without cause. Besides the open I-card, § 87(2)(b) could have been arrested for disorderly conduct for being loud,

agitated, and using obscene language. PO Baez then arrested § 87(2)(b) Lt. Johnson did not specifically instruct him to, but PO Baez arrested him after Lt. Johnson informed him there were open probable cause I-cards. § 87(2)(b) was brought into the stationhouse. Lt. Johnson noted the I-card originally stated there was probable cause to arrest and was then changed to suspect only later (BR 13).

PO Baez testified that he was speaking with a civilian outside the stationhouse when § 87(2)(b) approached and started recording their conversation. PO Baez told § 87(2)(b) he could not record the conversation due to privacy concerns, but § 87(2)(b) refused to stop recording. Lt. Johnson then came outside and said that an I-card with probable cause to arrest. PO Baez then arrested § 87(2)(b) on Lt. Johnson's instruction. He did not recall if § 87(2)(b) could have been arrested for anything besides the I-card. Once in the stationhouse, PO Baez viewed § 87(2)(b)'s I-cards and confirmed they were from the 7th Precinct and there was probable cause to arrest (BR 14).

As Lt. Johnson was the supervisor on scene, the stop allegation was plead accordingly.

Complaint #§ 87(2)(b) was issued in regards to § 87(2)(b) on March 21, 2020, for petit larceny (BR 29). I-card #§ 87(2)(b) was issued on June 3, 2020, for § 87(2)(b) in regards to complaint #§ 87(2)(b) (BR 15). As of June 9, 2020, the DD5 noted a probable cause to arrest I-card was activated for § 87(2)(b). On June 22, 2020, at 4:10 p.m., the I-card was changed from probable cause to arrest to suspect only – no probable cause to arrest.

A seizure of the person for constitutional purposes to be a significant interruption with an individual's liberty of movement. Where a police officer entertains a reasonable suspicion that a particular person has committed, is committing or is about to commit a felony or misdemeanor, the CPL authorizes a forcible stop and detention of that person. Finally, a police officer may arrest and take into custody a person when he has probable cause to believe that person has committed a crime, or offense in his presence People v. De Bour, 40 N.Y.2d 210 (1976) (BR 16).

It is undisputed that officers stopped § 87(2)(b) and brought him inside the 40th Precinct before transporting him to the 7th Precinct for an open I-card. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

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§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegation A** be closed as exonerated.

Allegation (B) Discourtesy: Detective Thomas Varian spoke discourteously to § 87(2)(b)

At the 5:21 mark of PO Liriano's BWC, PO Liriano and PO Baez were inside the holding cell area with § 87(2)(b). PO Liriano continuously asked § 87(2)(b) to take his shoes off as § 87(2)(b) refused to comply. At the 5:30 mark, Det. Varian entered the holding cell area and told § 87(2)(b) that there was a shooting last night. Det. Varian went on to say, "I don't see you bitching about that. I only see you bitching about us. So mind your fucking business and take off your shoes" (BR 04).

§ 87(2)(b) did not allege any use of profanity during this time.

Det. Varian testified that while PO Baez and PO Liriano were in the holding cells with § 87(2)(b) he could hear them speaking, but did not know what they were saying. He heard PO Liriano repeatedly asking § 87(2)(b) something, and based on hearing PO Liriano repeat himself, believed that § 87(2)(b) was being non-compliant. He did not recall seeing or hearing anything § 87(2)(b) was doing that was considered non-compliant. Upon reviewing BWC, Det. Varian recalled that he told § 87(2)(b) “I don’t see you bitching about that, I only see you bitching about us. So mind your fucking business and take off your shoes.” He did not know why he used profanity or what lead up to the incident, but it was possible he made the statement to get § 87(2)(b) to comply (BR 17).

The tribunal has held that profane remarks, made during stressful situations or while an officer is trying to get a chaotic situation under control, are not misconduct DAO-DCT Case number 2017-17005 (BR 18). The NYPD is committed to accomplishing its mission by treating every citizen with compassion, courtesy, professionalism and respect. Officers pledge to value human life, respect the dignity of each individual and render our services with courtesy and civility Patrol Guide Section 200-02 (BR 19).

Det. Varian admitted to using profane language when he spoke with § 87(2)(b). Det. Varian’s statement was captured on BWC that he told § 87(2)(b) “I don’t see you bitching about that. I only see you bitching about us. So mind your fucking business and take off your shoes.” Det. Varian did not know why he made the statement, but thought it might be to get § 87(2)(b) to comply with officers. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(b) It is therefore recommended that **Allegation B** be closed as **substantiated**.

Allegation (C) Force: Police Officer Ritchie Baez used physical force against § 87(2)(b)

Allegation (D) Force: Police Officer Shawn Liriano used physical force against § 87(2)(b)

Allegation (E) Force: An officer used physical force against § 87(2)(b)

From the 6:46 mark to the 10:17 mark of PO Baez’s first BWC, while in the holding cells with § 87(2)(b) both PO Baez and PO Liriano repeatedly asked § 87(2)(b) to remove his socks. § 87(2)(b) refused and held his foot out and told officers to remove his socks for him. § 87(2)(b) never removed his socks. At the 10:33 mark, PO Baez unlocked a cell and told § 87(2)(b) to go inside the cell. § 87(2)(b) refused and asked for his shoes. PO Liriano informed him they had to check the shoes first. § 87(2)(b) continued to ask for his shoes and moved away from the cell door. At the 10:50 mark, PO Liriano and PO Baez tried to lead § 87(2)(b) by his arms and back into the cell. § 87(2)(b) continued to ask for his shoes and leaned his body back into PO Baez and away from PO Liriano. PO Baez and PO Liriano then lifted § 87(2)(b) up by his arms and legs. § 87(2)(b) moved his body away from officers and held onto the outside of the cell and fell to the floor. While on the ground, PO Baez and PO Liriano removed § 87(2)(b)’s hands from holding onto the cell and PO Liriano repeatedly told him to stop resisting while he and PO Baez tried to handcuff § 87(2)(b). Additional officers entered the area and held § 87(2)(b)’s legs

and upper body while leg shackles and handcuffs were placed on him. At the 12:26 mark, § 87(2)(b) screamed, “What the fuck. You’re breaking my finger bro.” The footage does not clearly show § 87(2)(b)’s upper body or hands (BR 03).

At the 10:49 mark of PO Liriano’s BWC, PO Baez was holding § 87(2)(b)’s right arm and back when PO Liriano went to grab § 87(2)(b)’s right wrist. § 87(2)(b) was holding the cell with his left hand and moved his right hand away from PO Liriano. The officers lift § 87(2)(b) and bring him to the ground, where he continued to hold onto the cell with his left hand. PO Liriano held § 87(2)(b)’s right arm while § 87(2)(b) tried to move it back to hold onto the cell. At the 12:26 mark, § 87(2)(b) screamed that someone broke his finger. PO Liriano’s BWC does not capture § 87(2)(b)’s upper body at this point.

§ 87(2)(b) testified that while in the holding cell area, PO Baez and PO Liriano told § 87(2)(b) to remove his socks but he refused and told the officers to remove the socks themselves if they wanted to. The officers then told § 87(2)(b) to go into the cell, and § 87(2)(b) responded that he would not go into the cell without his shoes. § 87(2)(b) then argued with the officers and “acted disrespectfully.” § 87(2)(b) then had three conflicting testimonies about what happened next. He stated eight officers suddenly entered the area and tackled him to the floor, that officers grabbed his arms and legs and brought him to the ground, and that he did not recall how officers brought him to the ground. While on the ground, officers handcuffed him and put shackles on his feet. An officer then twisted § 87(2)(b)’s left thumb backwards, causing § 87(2)(b) pain. § 87(2)(b) did not see which officer pulled his finger and could not provide a description. Officers then placed § 87(2)(b) in the cell and left.

His medical records were never obtained because § 87(2)(b) did not sign the HIPAA forms.

PO Baez testified that he and another officer were trying to get § 87(2)(b) to remove his shoes and socks to check for contraband and go into a cell, but § 87(2)(b) refused by starting to scream. PO Baez then grabbed § 87(2)(b)’s back with one hand and tried to guide him inside. § 87(2)(b) stiffened up and tried to go down to the floor. Besides putting his hand on § 87(2)(b)’s back, PO Baez did not recall if he made any other physical contact with § 87(2)(b). More officers then arrived, but PO Baez could not recall the officers’ identity. The officers handcuffed § 87(2)(b) while he was on the ground. Officers then slid § 87(2)(b) into the cell because he did not want to stand. PO Baez did not tackle § 87(2)(b). He did not pull and twist § 87(2)(b)’s thumb backwards and did not see any other officer do so. He did not recall § 87(2)(b) complaining of pain in his left thumb.

PO Liriano’s testimony was consistent with PO Baez’s with the following additions. When § 87(2)(b) refused to enter the cell, PO Liriano grabbed § 87(2)(b)’s wrist. PO Liriano and PO Baez placed § 87(2)(b) on the ground because § 87(2)(b) was holding onto the cell and the officers were trying to get his hands to handcuff. At some point during the struggle, additional officers arrived, but PO Liriano could not recall the officers’ identity. Once on the ground, PO Liriano held § 87(2)(b)’s legs to stop him from kicking while other officers tried to control § 87(2)(b)’s arms. PO Liriano did not see any officer tackle § 87(2)(b) to the ground or twist his thumb backwards (BR 20).

Lt. Johnson testified that there was an altercation that led to § 87(2)(b) being placed in leg shackles, but he did not recall being present for it.

Force may be used when it is reasonable to ensure the safety of a member of the service or a third person, or otherwise protect life, or when it is reasonable to place a person in custody or to prevent

§ 87(2)(g)

§ 87(2)(g)

Civilian and Officer CCRB Histories

- § 87(2)(b)
- [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]

- § 87(2)(b) [REDACTED]
- [REDACTED]
- [REDACTED]
- Lt. Johnson has been a member of service for 15 and has been a subject in 7 CCRB complaints and 17 allegations, none of which were substantiated. § 87(2)(g) [REDACTED]
- PO Baez has been a member of service for 17 years and has been a subject in five CCRB complaints and six allegations, of which one was substantiated (BR 24).:
 - 200604236 involved a refusal to provide name/shield number, which was unsubstantiated and a substantiated allegation of question and/or stop. The Board recommended Command Discipline and the NYPD imposed No Disciplinary Action. § 87(2)(g) [REDACTED]
 - 201309963 involved an allegation of physical force and was exonerated.
 - 201407847 involved an allegation of physical force and was closed as complainant unavailable.
 - 201505433 involved an allegation of a refusal to obtain medical treatment and was unsubstantiated.
 - 202107184 involved an allegation of discourteous action and was closed as complainant unavailable.
- PO Liriano has been a member of service for ten years and has been a subject in two CCRB complaints and three allegations, of which two were substantiated (BR 25).:
 - 201405620 involved substantiated allegations of frisk and vehicle search. The Board recommended Command Discipline A and the NYPD imposed Command Discipline A. § 87(2)(g) [REDACTED]
- Det. Varian has been a member-of-service for 17 years and this is the first CCRB complaint to which he has been a subject (BR 26).

Mediation, Civil, and Criminal Histories

- § 87(2)(b) [REDACTED] declined to mediate this complaint.
- As of December 1, 2020, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regards this to complaint (BR 27).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)] [REDACTED]

Squad: 6

Investigator:	<u>Julia Moran</u> Signature	<u>Inv. Julia Moran</u> Print Title & Name	<u>03/14/2022</u> Date
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Squad Leader:	<u>Jessica Peña</u> Signature	<u>IM Jessica Peña</u> Print Title & Name	<u>3/14/2022</u> Date
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Reviewer:

Signature

Print Title & Name

Date